



Legal Aid Act 1964

1964 CHAPTER 30

An Act to provide for the payment out of the legal aid funds of costs incurred by successful opponents of legally aided litigants. [15th April 1964]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Power to
award costs
out of legal
aid fund.

1.—(1) Where a party receives legal aid in connection with any proceedings between him and a party not receiving legal aid (in this Act referred to as “the unassisted party”) and those proceedings are finally decided in favour of the unassisted party, the court by which the proceedings are so decided may, subject to the provisions of this section, make an order for the payment to the unassisted party out of the legal aid fund of the whole or any part of the costs incurred by him in those proceedings.

(2) An order may be made under this section in respect of any costs if (and only if) the court is satisfied that it is just and equitable in all the circumstances that provision for those costs should be made out of public funds; and before making such an order the court shall in every case (whether or not application is made in that behalf) consider what orders should be made for costs against the party receiving legal aid and for determining his liability in respect of such costs.

(3) Without prejudice to subsection (2) above, no order shall be made under this section in respect of costs incurred in a court of first instance, whether by that court or by any appellate court, unless—

(a) the proceedings in the court of first instance were instituted by the party receiving legal aid; and

- (b) the court is satisfied that the unassisted party will suffer severe financial hardship unless the order is made.

(4) An order under this section shall not be made by any court in respect of costs incurred by the unassisted party in any proceedings in which, apart from this Act, no order would be made for the payment of his costs.

(5) Without prejudice to any other provision restricting appeals from any court, no appeal shall lie against an order under this section, or a refusal to make such an order, except on a point of law.

(6) In this section "costs" means costs as between party and party; but the costs in respect of which an order may be made under this section include the costs of applying for that order.

2.—(1) Provision may be made by regulations under Part I of the Legal Aid and Advice Act 1949—

Supplementary provisions.

- (a) for determining the proceedings which are or are not to be treated as separate proceedings for the purposes of this Act, or as having been instituted by the party receiving legal aid for the purposes of section 1(3)(a) of this Act;
- (b) for modifying section 1(3)(b) of this Act in its application to an unassisted party who is concerned in proceedings only in a fiduciary, representative or official capacity; and
- (c) for regulating the procedure to be followed in connection with orders under this Act.

12 & 13 Geo. 6
c. 51.

(2) Regulations made by virtue of subsection (1)(c) of this section may in particular make provision—

- (a) for the reference of applications for orders under this Act, or of any questions of fact relevant to such applications, for inquiry and report by a master, a registrar or a district registrar, as the case may be;
- (b) for the exercise by a master, a registrar or a district registrar of the powers under this Act of a judge of the High Court or a county court;
- (c) for enabling the Law Society to be heard in connection with any order under this Act.

(3) For the purposes of this Act proceedings shall be treated as finally decided in favour of the unassisted party—

- (a) if no appeal lies against the decision in his favour;
- (b) if an appeal lies against the decision with leave, and the time limited for applications for leave expires without leave being granted; or

- (c) if leave to appeal against the decision is granted or is not required, and no appeal is brought within the time limited for appeal;

and where an appeal against the decision is brought out of time, the court by which the appeal (or any further appeal in those proceedings) is determined may make an order for the repayment by the unassisted party to the legal aid fund of the whole or any part of any sum previously paid to him in respect of those proceedings under this Act.

(4) Where a court decides any proceedings in favour of the unassisted party and an appeal lies (with or without leave) against that decision, the court may, if it thinks fit, make or refuse to make an order under this Act forthwith, but any order so made shall not take effect—

- (a) where leave to appeal is required, unless the time limited for applications for leave to appeal expires without leave being granted;
- (b) where leave to appeal is granted or is not required, unless the time limited for appeal expires without an appeal being brought.

(5) Where a party begins to receive legal aid in connection with any proceedings after those proceedings have been instituted, or ceases to receive legal aid before they are finally decided, or otherwise receives legal aid in connection with part only of any proceedings, the reference in subsection (1) of section 1 of this Act to the costs incurred by the unassisted party in those proceedings shall be construed as a reference to so much of those costs as is attributable to that part.

Application
to Scotland.

3.—(1) In the application of this Act to Scotland, for any reference to costs there shall be substituted a reference to expenses; for references to regulations under Part I of the Legal Aid and Advice Act 1949 there shall be substituted references—

- (a) in relation to matters described in section 2 (1)(b), to regulations made by the Secretary of State subject to the provisions of subsections (4) and (5) of section 12 of the Legal Aid (Scotland) Act 1949;

- (b) in relation to any other matters, to acts of sederunt made under section 13 of the last mentioned Act;

and section 2(2)(a) and (b) shall be omitted.

(2) References in this Act, in its application to Scotland, to proceedings shall be construed as references to civil proceedings only.

12 & 13 Geo. 6
c. 63.

4. No limitation imposed by the Government of Ireland Act 1920 on the power of the Parliament of Northern Ireland to make laws shall preclude that Parliament from enacting, in relation to proceedings in the House of Lords or the Judicial Committee of the Privy Council on any appeal or reference from Northern Ireland, provisions corresponding to provisions of this Act.

Powers of
Parliament of
Northern
Ireland.
10 & 11 Geo. 5
c. 67.

5. There shall be defrayed out of moneys provided by Parliament any increase attributable to the provisions of this Act in the sums so payable under the Legal Aid and Advice Act 1949 or the Legal Aid (Scotland) Act 1949.

Expenses.

6.—(1) This Act may be cited as the Legal Aid Act 1964.

Short title,
commence-
ment,
construction,
citation and
extent.

(2) Section 4 of this Act shall come into force on the passing of this Act, and the remaining provisions of this Act shall come into force, as regards England and Wales, on such day as the Lord Chancellor may by statutory instrument appoint and, as regards Scotland, on such day as the Secretary of State may by statutory instrument appoint.

(3) This Act, in its application to England and Wales, shall be construed as one with Part I of the Legal Aid and Advice Act 1949, and may be cited with the Legal Aid and Advice Acts 1949 and 1960 as the Legal Aid Acts 1949 to 1964.

(4) This Act, in its application to Scotland, shall, subject to section 3(2) of this Act, be construed as one with the Legal Aid (Scotland) Act 1949, and may be cited with the Legal Aid (Scotland) Acts 1949 and 1960 as the Legal Aid (Scotland) Acts 1949 to 1964.

(5) The provisions of this Act, other than section 4, do not extend to Northern Ireland.